

		answering items which do not fall within [its] personal knowledge.” (<i>Ibid.</i>) Thus, Defendant’s responses are insufficient. Therefore, Plaintiff’s motion to compel further responses is granted. <u>Sanctions</u> “The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2033.290, subd. (d).) Defendant was substantially justified in opposing the motion.
4	Herrera-Perkins vs. Ford Motor Company 2024-01372239	Plaintiff’s Motion to Compel Further Responses to Requests for Production, Set One, and Strike Objections Motion to Compel Further Responses to Requests for Production. Plaintiffs Mary L. Herrera-Perkins and Elisa M. Herrera-Perkin’s (Plaintiffs) Motion to Compel Further Responses to Requests for Production (Motion) is GRANTED, in part, and DENIED, in part. Plaintiffs move for an order striking Defendant’s objections and compelling further responses and documents to Plaintiffs’ Request for Production of Documents, Set One, Nos. 16, 19, 20, 21, 32, and 42. Code of Civil Procedure section 2031.310 states in relevant part: (a) On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) A statement of compliance with the demand is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive. (3) An objection in the response is without merit or too general.

(b) A motion under subdivision (a) shall comply with each of the following:

(1) The motion shall set forth specific facts showing good cause justifying the discovery sought by the demand.

(2) The motion shall be accompanied by a meet and confer declaration under Section 2016.040.

As an initial matter, the Court notes that Plaintiffs confirm the parties were able to agree on a protective order to protect the production of confidential materials. Therefore, any confidentiality concerns have been addressed.

Request Nos. 16, 20, and 21

Plaintiffs seek all documents internal analysis or investigation, failure rates and fixes regarding the braking system defect in vehicles of the same year, make, and model as the Plaintiffs' vehicle. These requests are relevant because they have some probative value as to whether Defendant willfully violated the Song-Beverly Act. (See *Donlen v. Ford Motor Co.* (2013) 217 Cal.App.4th 138; *Santana v. FCA US, LLC* (2020) 56 Cal.App.5th 334.)

The motion is GRANTED as to Request Nos. 16, 20, and 21. Defendant must provide a privilege log for all documents withheld based on privilege.

Request No. 19

Plaintiffs seek customer complaints, claims, reported failures, and warranty claims regarding the braking system defect. The request is relevant because it has some probative value as to whether Defendant willfully violated the Song-Beverly Act. (See *Donlen v. Ford Motor Co.* (2013) 217 Cal.App.4th 138.) However, the request is unduly burdensome as it is not limited to vehicles of the same year, make, and model as Plaintiffs' vehicle and sold in California.

Accordingly, the motion is GRANTED as to Request No. 19 but limited to vehicles of the same year, make, and model as Plaintiffs' vehicle and sold or leased in California. Defendant must provide a privilege log for all documents withheld based on privilege.

Request No. 32

Plaintiffs seek all documents Defendant relied upon to support its contention that it was under no obligation to promptly replace or repurchase Plaintiffs' vehicle. In its response, Defendant agreed to produce a list of documents. Plaintiffs contend the list is incomplete because it does not include Defendant's warranty and vehicle repurchase policies and procedures.

A manufacturer's warranty and vehicle repurchase policies and procedures have some probative value as to whether Defendant willfully violated the Song-Beverly Act. (See *Oregel v. American Isuzu Motors, Inc.* (2001) 90 Cal. App. 4th 1094, 1103-05 [finding manufacturer's policies and procedures requiring a part to be replaced or adjusted before it was deemed a "repair attempt" under the lemon law and refusing to find a "repair attempt" where a mechanic was unable to diagnose the problem were sufficient to establish a finding of willfulness under Song-Beverly Act]; see also *Johnson v. Ford Motor Co.* (2005) 35 Cal. 4th 1191, 1199 [holding Ford's buyback program was "structured precisely to short-circuit lemon law claims," entitling the plaintiff to punitive damages].)

Thus, the motion is GRANTED as to Request No. 32 but only to the extent Defendant relied upon its warranty and vehicle repurchase policies and procedures to support its contention that it was under no obligation to repurchase or replace Plaintiffs' vehicle.

Request No. 42

Plaintiffs seek all documents that evidence Defendant's organizational charts of people within its customer service call center or prelitigation department. This request has some probative value as to whether Defendant willfully violated the Song-Beverly Act. (See *Kwan v. Mercedes-Benz of N. Am.* (1994) 23 Cal. App. 4th 174, 186 [explaining that absence of written policy on implementation of Act's provisions is admissible to prove lack of good faith to comply with statutory duty]; *Oregel, supra*, 90 Cal. App. 1105 [organizational structure "that erects hidden obstacles ... to obtain(ing) redress under the Act" would also go to a lack of good faith].)

		However, since all that Plaintiffs need are the organizational charts themselves, “all documents that evidence” the chart(s) is overly broad. Accordingly, the motion is GRANTED as to Request No. 42 but limited to the organizational chart(s) themselves.
5	Schwartz vs. Brunswick Corporation 2023-01331323	Plaintiff’s Motion for Protective Order The Motion for Protective Order by Plaintiff Martin Schwartz is DENIED as moot. The motion, which seeks a protective order regarding the depositions of Plaintiff and his wife, was filed on 7/31/24 without a proof of service. The hearing date was set for a date after trial was set to commence. Code of Civil Procedure section 2024.020(a) states, “Except as otherwise provided in this chapter, any party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day, and to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action.” Here, Plaintiff’s counsel did not obtain leave of Court for this motion to be heard after the discovery motion cutoff date. In the opposition filed on 11/25/24, Defendant’s counsel declares that Plaintiff appeared for deposition on 9/13/24, and that Defendant has withdrawn its request to take the deposition of Plaintiff’s wife. Therefore, the motion is moot as to the request for a protective order. As to the request for sanctions, Plaintiff has not filed a reply brief. Plaintiff failed to file a proof of service of the motion and failed to obtain a hearing date prior to the discovery motion cutoff date. Therefore, the request for sanctions is denied.
6	Geng vs. Han 2023-01320032	Plaintiff’s Motion for Terminating Sanctions or Alternatively Issue Evidentiary Sanctions Plaintiff Ivy Zihan Geng’s unopposed motion for terminating sanctions, or, alternatively, evidentiary, issue, and monetary sanctions against defendant Feijuan Xiong is GRANTED in part and DENIED without prejudice in part. Plaintiff’s request for judicial notice of Exhibits 1-15 is GRANTED.